

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

GREG CAMPBELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MANUEL SANCHEZ, TAX # 955441
INDIVIDUALLY AND AS A POLICE
OFFICER, JOHN DOE OF TRANSIT BUREAU
DISTRICT 4, INDIVIDUALLY AND AS
A POLICE OFFICER.,

Defendants.

-----X

**SUMMONS WITH
VERIFIED COMPLAINT**

Index No.:

Dated Purchased:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 26th day of May, 2016

EMDIN & RUSSELL, LLP.
Royce Russell, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

New York City Police Department
1 Police Plaza
New York, NY 10007

Police Office Sanchez
Transit Bureau Dist. 4
Union Square subway station
14th Street/Union Square West,
New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GREG CAMPBELL,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MANUEL SANCHEZ, TAX# 955441,
INDIVIDUALLY AND AS A POLICE
OFFICER, JOHN DOE OF TRANSIT BUREAU
DISTRICT 4, INDIVIDUALLY AND AS A
POLICE OFFICER,

Defendants.

-----X

The plaintiff, Greg Campbell, by his attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. At all times Greg Campbell hereafter referred as "Plaintiff/Campbell" was a resident of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was, and still is a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
3. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter certified to as "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all the police officers and correction officers therein.

4. Upon information and belief, at all times hereinafter mentioned, and on the 4th day of August, 2015, Police Officer Manuel Sanchez, hereinafter referred to as “Sanchez” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to Transit Bureau District 4., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his tax ID number is 955441

5. Upon information and belief at all times hereinafter mentioned and on the 4th day of August, 2015, “Sanchez”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

6. Upon information and belief, at all times hereinafter mentioned, and on the 4th day of August, 2015, Police Officer John Doe was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the Transit Bureau District 4 and at all relevant times set forth below acted in the capacity of a police officer.

7. Upon information and belief at all times hereinafter mentioned and on the 4th day of August, 2015, “John Doe” was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

8. Upon information and belief, at all times hereinafter mentioned, and on the 4th day of August, 2015, “John Doe” was the supervisor and in charge of defendant Sanchez.

9. Upon information and belief, on August 4th, 2015 Sanchez and/ or John Doe, individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines, Police Legal Memorandum, Police Interim Orders, and Police Administrative Orders.

10. On the 4th day of August, 2015, plaintiff Greg Campbell, hereinafter referred to

as “Campbell” was a resident of the State of New York, County of New York.

11. That on August 4th, 2015, at approximately 6:30 pm – 7:00 pm. the plaintiff, Campbell, was lawfully crossing the street and in the vicinity of East Houston Street and Lafayette Street, New York, County within the City and State of New York hereinafter referred to as “the location”.

12. Just prior to Campbell’s detention and false arrest he observed a male “Sanchez” in a car with windows down, music playing loudly and “Sanchez” continuously beeping his horn at the steady red traffic light and /or the traffic.

13. Campbell as he started to walk on the sidewalk toward a bike store stated “Hey relax, the light is going to change in a minute.”

14. Immediately after making said statement Sanchez pulled over the vehicle he was driving and parked. Sanchez then aggressively approached Campbell and violently grabbed Campbell and slammed him against the vehicle he was driving.

15. Sanchez then tightly handcuffed Campbell, although he committed no criminal act.

16. Sanchez slammed Campbell against the passenger side of his vehicle handcuffed him tightly while saying “If you’re going to act like a kid I am going to treat you like one. You’re going to see the Judge.” Upon information and belief the vehicle was a “black sedan”, an unmarked police vehicle.

17. Sanchez then transported him to Transit District 4 police hub station, located in the East 14th Street train station.

18. Campbell was presented to the Desk Sergeant “John Doe” who Campbell asked

why he was being arrested and “ John Doe” replied “ Sorry I can’t help you”.

19. Although Doe had the power and authority to intervene, he did not intervene in the false detention, arrest, and/or imprisonment of Campbell.

20. Prior to Campbell’s arrest Sanchez never identified himself as a Police Officer, at the “location” nor at anytime thereafter, also Sanchez was not wearing any Police identifying outerwear.

21. Campbell was searched, arrested, detained and imprisoned by Sanchez.

22. Campbell was issued a Summons based on fabrications, falsely accusing Campbell of Disorderly Conduct among other charges. Upon information and belief, said Summons was approved by John Doe.

23. While being falsely detained, arrested, and imprisoned Mr. Campbell’s plea for medical attention/assistance was ignored.

24. Upon release “Sanchez” threatened Campbell by whispering in his ear, in sum and substance, that Campbell better not say anything to any one.

25. The notices of Campbell’s claims and intention to sue for damages the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant “City”.

26. That a 50(h) hearing was held on 1/26/16 at 10:30 am.

27. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

28. That this action is commenced within one year and 90 days after the cause of

action arose.

29. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, CAMPBELL
FOR FALSE IMPRISONMENT

30. The Campbell repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "29" with the same force and effect as if more fully and at length set forth herein.

31. That beginning on or about the 4th day of August, 2015, at or about approximately 6:30 p.m. 7:30 p.m. At or near the "location" until the plaintiff's release from custody at the Transit Bureau District 4, hub station at approximately 8:00 pm to 8:30 p.m. the same day, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

32. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that Campbell was guilty of any crimes.

33. Campbell was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

34. That the defendants, their agents' servants and/or employees, as set forth above, intended to confine Campbell; Campbell was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

35. That by reason of the aforesaid false imprisonment and detention, Campbell was subjected to great indignity, humiliation, loss of work and loss of freedom and the said Campbell has been otherwise damaged.

36. That by reason of the aforesaid, Campbell has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF, CAMPBELL
FOR FALSE ARREST

37. The Campbell repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36" with the same force and effect as if more fully and at length set forth herein.

38. That beginning on or about the 4th day of August, 2015, at or about approximately 6:30 pm – 7:30 pm at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

39. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds to believe that Campbell committed, or was about to commit a crime or was guilty of any crimes.

40. Campbell was wholly innocent of all criminal charges and did not contribute in

any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

41. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest Campbell; that Campbell was conscious of the arrest and confinement; Campbell did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

42. That by reason of the aforesaid false arrest, Campbell was subjected to great indignity, humiliation, stress and loss of freedom and the said Campbell has been otherwise damaged.

43. That by reason of the aforesaid, Campbell has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF, CAMPBELL
FOR ASSAULT AND BATTERY

44. Campbell repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "43" with the same force and affect as if more fully and at length set forth herein.

45. Campbell was grabbed, slammed into a vehicle and handcuffed, by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including the defendants Sanchez and/or Doe.

46. That all said contact was committed without Campbell's permission or consent.

47. That all said contact was unlawful and without privilege.

48. That said use of force was excessive under the circumstances.

49. That all contact committed by defendants through their agents, servants, and/or employees, including the named defendant police officers, was offensive to Campbell and caused him to fear further contact and imminent harm, and caused Campbell to sustain physical and/or psychological injury and/or discomfort.

50. That the above acts committed by the named defendants constituted an assault and/or battery of Campbell.

51. That by reason of the aforesaid, Campbell has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF, CAMPBELL
FOR NEGLIGENCE

52. Campbell repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "51" with the same force and affect as if more fully and at length set forth herein.

53. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employee, defendant Sanchez, in that said employee lacked the experience, deportment and ability to be employed by the defendants in the capacity in which he was utilized, i.e. as a police officer and supervisor of other police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, training, retraining, retaining,

promoting and monitoring Sanchez, and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

54. That the aforesaid occurrence, to wit: the assault and battery, false arrest and imprisonment, violation of right to assemble and/or associate and to freedom of speech and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendant Sanchez without any negligence on the part of Campbell contributing thereto.

55. That by reason of the aforesaid, Campbell was injured, imprisoned, lost his freedom, was maliciously prosecuted and he was thereby damaged.

56. That by reason of the aforesaid, Campbell has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH CAUSE OF ACTION:
FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST SANCHEZ AND DOE

57. Campbell repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and effect as if more fully and at length set forth herein.

58. That on or about the 4th day of August, 2015 at or about approximately 6:30 pm - 7:30 p.m. at the "location", Sanchez and upon information and belief Doe, were present thereat as part of their regular and official employment as police officers for the defendant, "City".

59. Campbell was lawfully and properly at the "location", exercising his right to assemble, right to associate, and to freedom of speech, when "Sanchez" and/or "Doe",

individually and/or collectively, acting as agents, servants and/or employees of the defendant “City”, forcibly seized and assaulted and battered Campbell absent just cause, provocation or reason. Campbell had not engaged in any criminal conduct or suspicious activity.

60. Sanchez, in response to Campbell exercising his freedom of speech, right to protest, and/or right to assemble, battered, assaulted and handcuffed and falsely arrested the plaintiff.

61. The “officers”, Sanchez and/or Doe, individually and/or collectively filed or conspired to file, false statements, paperwork, and gave, and/or conspired to give, false information regarding the circumstances of Campbell’s arrest.

62. Sanchez and/or Doe failed to intervene, mitigate, stop or report the illegal conduct complained of herein, and instead participated and were complicit in the conduct.

63. That all acts committed by Sanchez and/or Doe and other agents servants, employees and/or agents of the defendant “City” were committed within the scope of their employment and under color of law.

64. That said acts constituted a violation of Campbell’s right to freedom of speech, right to assemble and associate, and an illegal seizure of the plaintiff and deprived plaintiff of his rights and liberties as set forth in the Constitutions of the United States, i.e. the First, Fourth and Fourteenth Amendments, and of the Constitution of the State of New York and under 42 U.S.C. Section 1983.

65. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of Campbell to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,

b) The right to freedom of speech and expression.

c) The right to Due Process Law.

d) The right to equal protection under the law.

e) The right to assemble

f) The right to be free from cruel and/or unusual punishment and/or excessive force

66. That by reason of the aforesaid violations, use of force, seizure of Campbell's person, his false arrest and false imprisonment, assault and battery, making false statements, and malicious prosecution the defendant, the Police Officers, Sanchez and/or Doe, violated Campbell's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and violated 42 U.S.C. §1983.

67. That as a direct proximate result of Sanchez and Doe actions Campbell was subjected to great pain, injury, indignities and humiliation, loss of freedom, imprisonment, malicious prosecution and pain and distress of mind and body.

68. That by reason of the aforesaid, Campbell has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF, CAMPBELL
FOR MALICIOUS PROSECUTION

69. Campbell repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and affect as if more fully and at length set forth herein.

70. That the "officers" as agents, servants and/or employees of the City of New York, maliciously prosecuted the plaintiff for crimes that they knew he did not commit, and/or that was based upon an illegal search and seizure.

71. That as a result of said malicious prosecution of Campbell was caused to attend two court appearances until all charges were dismissed on November 4, 2015.

72. That by reason of the aforesaid, Campbell has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, Campbell demand judgment against the defendants in a sum to be determined by the trier of fact on the First through Sixth causes of Action, plus costs, attorney's fees, punitive damages (on the Fifth cause of action), and/or declaratory and such other and further relief as to the Court seems just and proper on the First through the Sixth causes of action.

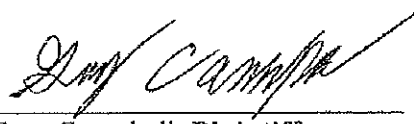
DATED: New York, New York
May 26, 2016


Royce Russell, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-399

CLIENT VERIFICATION

STATE OF NEW YORK]
] ss.:
COUNTY OF NEW YORK]

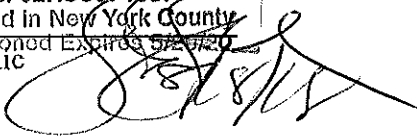
I, Greg Campbell, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Summons & Verified Complaint, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.



Greg Campbell, Plaintiff

Sworn to before me this
25 day of May, 2016

ROYCE RUSSELL, ESQ
Notary Public, State of New York
No. 02RU6074867
Qualified in New York County
Commission Expires 5/24/20
Notary Public



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

GREG CAMPBELL

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MANUEL SANCHEZ, TAX # 955441
INDIVIDUALLY AND AS A POLICE
OFFICER, JOHN DOE OF TRANSIT BUREAU
DISTRICT 4, INDIVIDUALLY AND AS
A POLICE OFFICER.,

Defendants

SUMMONS WITH VERFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL

Attorneys for Plaintiff

499 Seventh Avenue

New York, NY 10018

(212) 683-3995

TO:	Corporation Counsel	P.O. Manuel Sanchez	NYPD
	100 Church Street	Transit Bureau Dist. 4	1 Police Plaza
	New York, New York 10007	14th Street/Union Square West	New York, NY 10007
		New York, NY 10003	

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: May 24, 2016

Signature

Royce Russell, Esq.

=====

PLEASE TAKE NOTICE

- [] NOTICE OF ENTRY
that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on
- [] NOTICE OF SETTLEMENT that an order of which the within is a true copy will be
presented for settlement to the HON. one of the judges of the within named Court, at
on 20__